

Court No. - 21

Case :- WRIT - C No. - 6455 of 2024

Petitioner :- Suneeta Pandey

Respondent :- State Of Up And 2 Others

Counsel for Petitioner :- Sheo Mani Yadav

Counsel for Respondent :- C.S.C., Sushil Kumar Pandey

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Kshitij Shailendra, J.

1. The petitioner has challenged the notice of provisional assessment dated 16.01.2023 issued by the respondent-Electricity Department to the petitioner in a case of theft of electricity.
2. Shri Sushil Kumar Pandey, counsel for the Electricity Department points out that the petitioner had filed a reply after one year on 15.12.2023. He admits that final assessment order has not been made so far.
3. Consequently, we **dispose of** the instant petition with direction to respondent No.3 to consider the objection dated 15.12.2023 and pass final assessment order strictly in accordance with the procedure prescribed under the Electricity Supply Code 2005.

Order Date :- 28.2.2024

Jyotsana

(Kshitij Shailendra, J.) (Manoj Kumar Gupta, J.)